MINERALS IDENTITY (PRIVATE) LIMITED
versus
PROSPER SHUMBA
and
INNOCENT MTUKWA
and
JOHANE TOM
and
PROVINCIAL MINING DIRECTOR, MASHONALAND CENTRAL N.O.
and
MINISTER OF MINES AND MINING DEVELOPMENT N.O.

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 30 June and 9July 2026

Opposed Application

D Chinawa, for the applicant
G J Manyumbu for the 1st and 2nd respondents
S Mutendi and *R B Madiro* for the 4th and 5th respondents
No appearance for the 3rd respondent.

MAMBARA J:

[1] This is an application for an interdict arising from mining activities being conducted at Inyatsi, Mazowe District, within Reserved Area 1566. The applicant seeks to restrain the first, second and third respondents, together with those acting through them, from continuing with mining and construction works within the area which the applicant says falls under Special Grant 10332, pending the determination of eviction proceedings under case number HCH 5896/25.

[2] The applicant was represented by Mr *D. Chinawa*. The first and second respondents were represented by Mr *G. J. Manyumbu*. There was no appearance for the third respondent. The fourth and fifth respondents were represented by Ms *S. Mutendi*, with Ms *Madiro* also addressing the court on certain issues.

[3] The papers reveal a regrettable state of affairs. They disclose a mining dispute in which the central issue is not a marginal boundary disagreement, but whether respondents who hold, or claim through, mining rights for Angee 62 at Brecon Farm can lawfully conduct mining operations within the applicant's Inyatsi Special Grant area. The record shows that the applicant relies on Special Grant 10332 in Inyatsi, Reserved Area 1566, and on an order granted by CHITAPI J compelling the Minister of Mines and the Permanent Secretary to issue registration certificates for, *inter alia*, SG 10332.

[4] The applicant's founding papers state that it applied for a Special Grant in 2020, that there was a site verification exercise, that the Special Grant was approved, that registration and rental fees were invoiced and paid, and that the order in HCH 6447/25 was later granted after difficulties arose in the issuance of certificates.

Preliminary application to set aside the set down

[5] At the commencement of the hearing, *Mr Manyumbu* applied for the setting aside of the set down. He relied on r 59(17) of the High Court Rules, 2021. His submission was that the matter had started as an urgent chamber application and, after being struck off the roll of urgent matters, it had been transferred to the ordinary roll. He argued that once that occurred, the ordinary *dies induciae* applied, and the applicant ought to have served the respondents afresh so that the time for the filing of opposition could be reckoned in the ordinary manner.

[6] The argument was framed as one of fair hearing. Counsel contended that the respondents were not given adequate time to file notices of opposition on the merits and that the request for set down had been made prematurely.

[7] *Mr Chinawa* opposed the application. He submitted that before the matter was struck off the urgent roll, the parties had appeared before MANDAZA J, who had given case-management directions for the filing of papers. The first and second respondents filed notices of opposition, opposing affidavits and heads of argument. They assumed agency through legal practitioners. They fully participated. The matter was then set down for hearing on the opposed roll. The applicant's position was that the respondents were already before the court and had suffered no prejudice.

[8] Rule 60(19) of the High Court Rules, 2021 provides that an urgent application struck off the roll for want of urgency is transferred to the roll of ordinary court applications; a fresh application is not required. That rule is intended to prevent duplication. It is not a procedural trap which requires a litigant to commence proceedings anew after the court has merely declined to treat the matter as urgent.

[9] In this matter, the respondents were not ambushed. They had assumed agency, filed opposition and heads, and appeared through counsel. The record also contains a certificate of service showing service of the urgent chamber application upon Mudondo at Inyatsi and Kasipa Mining area, and service upon the Ministry of Mines in respect of the fourth and fifth respondents.

[10] Procedural rules serve the administration of justice. They are not to be deployed to defeat a hearing where no prejudice has been shown. The application to set aside the set down was dilatory. It had no merit. I dismissed it.

The fourth and fifth respondents' opposition

[11] A further preliminary issue concerned the position of the fourth and fifth respondents. Their notice of opposition and opposing affidavit were filed late. Their heads of argument were also filed late. The affidavit was deposed to by Ms Mitshel Ngadya, who described herself as the Acting Provincial Mining Director for Mashonaland Central. In substance, the affidavit attacked the applicant's *locus standi* and contended that the applicant's Special Grant application had been rejected because of alleged overpegging of SG 7291.

[12] Mr *Chinawa* objected to those papers. He submitted that the fourth and fifth respondents were cited in their official capacities and that no substantive relief was sought against them. He further argued that Ms Ngadya had placed no authority before the court to depose to an affidavit on behalf of either the Provincial Mining Director (PMD) or the Minister. It was also argued that, at the relevant time, there was a substantive Provincial Mining Director for Mashonaland Central and no explanation was placed before the court for why Ms Ngadya was acting or how she acquired authority to oppose the application.

[13] The applicant relied on *Chamisa* v *Mnangagwa & Ors* CCZ 42/18 for the proposition that a public official cited in a nominal or official capacity should not enter the arena to defend the substantive cause of parties against whom relief is sought, where no relief is

sought against that public official. It is generally sufficient in such circumstances for the public official to abide by the decision of the court, unless there is a direct administrative interest to be protected.

[14] *Ms Mutendi* submitted that under r 59(26) a barred party may make an oral application for the upliftment of the bar. Ms *Madiro* then argued that Ms Ngadya was acting PMD during the relevant period because the substantive PMD was not in office and that, in terms of r 58, a person privy to the facts may depose to an affidavit. Reliance was placed on *Elias Mapendere & Ors* v *Minister of Justice, Legal and Parliamentary Affairs & Ors* HH 420/17.

[15] *Mapendere* does not assist the fourth and fifth respondents on the facts of this case. In that matter, the court accepted the affidavit because the deponent expressly stated that she had authority, was the accounting officer, and was seized with the day-to-day running of the ministry. The court emphasised that the deponent was privy to the relevant facts and that her averment of authority was sufficient in that context.

[16] The present matter is different. Ms Ngadya did not merely provide administrative facts within the knowledge of the mining office. She filed an affidavit whose effect was to dispute the applicant's rights and to advance a position that directly assisted the first to third respondents. No proper authority was placed before the court authorising her to depose to an affidavit on behalf of the Minister. Nor was there an adequate explanation for the role she assumed in relation to the Provincial Mining Director where a substantive office holder was said to exist.

[17] I was prepared to condone the late filing of heads to the limited extent necessary to hear counsel on the preliminary issue. I was not prepared to overlook the absence of authority and the improper entry into the arena by nominal official respondents. The notice of opposition and opposing affidavit filed for the fourth and fifth respondents are accordingly expunged from the record. The fourth and fifth respondents remain cited in their official capacities for purposes of the effectiveness of the order and its enforcement.

[18] I add this. The conduct disclosed by the papers is troubling. A public mining office should be an impartial regulator. Its duty is to administer the Mines and Minerals Act lawfully, fairly and transparently. It is not to assist private persons who are accused of illegal mining to prolong extraction from disputed ground. The affidavit filed in the name of the fourth and fifth respondents did not tell the court what steps were being taken to stop

unlawful mining if the first to third respondents had no authority within SG 10332. Instead, it sought to undermine an extant court order. That is not the stance expected of a public authority.

The issues

[19] The issues for determination are these. First, whether the applicant has established a right capable of protection. Second, whether the first to third respondents have shown any lawful basis for mining within SG 10332 at Inyatsi. Third, whether there are material disputes of fact that cannot be resolved on the papers. Fourth, whether the applicant has satisfied the requirements for an interdict. Fifth, what relief is competent.

The law on interdicts

[20] The requirements for an interim or temporary interdict are settled. The applicant must establish a clear right or at least a *prima facie* right though open to some doubt; a well-grounded apprehension of irreparable harm if relief is not granted; that the balance of convenience favours the granting of relief; and the absence of another satisfactory remedy. This formulation appears in *Setlogelo* v *Setlogelo* 1914 AD 221, *Tribac (Pvt) Ltd* v *Tobacco Marketing Board* 1996 (2) ZLR 52, *Flame Lily Investments (Pvt) Ltd* v *Zimbabwe Salvage (Pvt) Ltd & Anor* 1980 (1) ZLR 378, and numerous later authorities. The same formulation is repeated in Zimbabwean decisions collected in recent case law.

[21] Where a clear right is established, the inquiry into harm is less exacting than where the right is merely *prima facie*. A court will still consider injury, balance of convenience and adequacy of alternative remedies, but the stronger the right, the less room there is for a wrongdoer to insist that the rights-holder should be left to damages after the event.

The applicant's right and the effect of the order of CHITAPI J

[22] The applicant relies on SG 10332 in Inyatsi, within Reserved Area 1566. It also relies on the order granted by CHITAPI J in HCH 6447/25 on 14 January 2026. That order granted mandamus relief and ordered the Minister of Mines and Mining Development and the

Permanent Secretary to issue and avail to the applicant registration certificates for Special Grants 10213, 10331, 10332 and 10333 within 14 days.

[23] That order has not been set aside. It has not been varied. It has not been suspended by any competent court. It remains extant. A court order must be obeyed unless and until it is discharged. This principle is elementary. In *Hadkinson* v *Hadkinson* [1952] 2 All ER 567, quoted with approval in Zimbabwean authority, the obligation to obey court orders was described as plain and unqualified; even a person who believes an order to be irregular must obey it until set aside.

[24] The first and second respondents argued that the applicant cannot claim protection because it has no certificate of registration in hand. They cited cases such *as Chamu Mining Syndicate* v *Mupundwa & Anor* HMA 31/17, *Marumahoko & Ors* v *PMD Mashonaland West* HH 59/15 and *Mboma* v *San He Zimbabwe (Pvt) Ltd & Ors* HH 47/26 for the proposition that mining rights are ordinarily proved by a certificate of registration and that an approval letter is not a certificate.

[25] Those authorities state a sound general principle. But this case is not an ordinary case of a party relying merely on an informal expectation, a bare approval letter, or an uncompleted administrative process. Here, the applicant has an extant order of this court compelling the very administrative officers responsible for mining certificates to issue the certificate for SG 10332. The respondents cannot take advantage of the Ministry's failure, refusal or delay in obeying that court order and then argue that the absence of the physical certificate destroys the applicant's right.

[26] To hold otherwise would permit administrative disobedience to defeat judicial authority. It would mean that an official against whom mandamus has been issued can frustrate the beneficiary of the order by simply not complying, while third parties then mine the ground and plead the non-issuance as a defence. That proposition is inimical to the rule of law.

[27] The subsequent administrative conduct makes the matter worse. The applicant's answering papers show that after the mandamus order, the Ministry sought to rely on an alleged prior rejection letter and on alleged overpegging with SG 7291. The applicant's correspondence of 23 February 2026 challenged that stance and pointed out that, if there had

been a prior rejection, the Ministry's proper remedy was to seek to set aside or vary the order, not to ignore it.

[28] The papers filed for the fourth and fifth respondents also relied on a "draft" rescission application. A draft application is not an order. It does not suspend an extant order. It cannot be used as a shield for non-compliance. Until the order of CHITAPI J is set aside, the administrative respondents are bound by it, and this court must treat the applicant's rights under SG 10332 as judicially recognised for present purposes.

[29] The applicant has therefore established at least a very strong *prima facie* right. On the papers, that right is closer to a clear right.

The respondents' claimed right: Angee 62

[30] The first and secnd respondents' defence is founded on Angee 62, a block of ten gold reef claims registered under certificate number 39309. The second respondent says he pegged and registered Angee 62 and later sold it to Gold Yields (Private) Limited. The first respondent says he does not personally hold mining rights and that any operations are by Gold Yields and foreign investors. The supporting affidavit for Gold Yields states that Gold Yields bought Angee 62 from the second respondent and is undertaking development of the mining location.

[31] That defence does not answer the central question. The question is not whether Angee 62 exists. The question is where Angee 62 is located.

[32] The certificate of registration and the registration card relied upon by the respondents locate Angee 62 at Brecon Farm, approximately 4 km south-west of Chirisere School and 3 km north of Kachuta School. The applicant's papers and heads of argument consistently point out that this location is materially different from Inyatsi, where SG 10332 is situated.

[33] The topographical material placed before the court shows that Brecon Farm is not Inyatsi and that the distance between the two areas is over 4 km. The applicant's analysis of the map places the lawful location of Angee 62 at Brecon Farm, while the purported location of Angee 62 within SG 10332 is the disputed one.

[34] The respondents produced no certificate of abandonment, amendment, relocation or fresh certificate issued by the Mining Commissioner relocating Angee 62 from Brecon Farm to Inyatsi. They produced no lawful authority permitting the migration of Angee 62 into the

applicant's SG 10332. They produced no authenticated location map showing that their certificate number 39309 covers the Inyatsi area.

[35] A mining certificate identifies a defined mining location. It is not a portable instrument to be carried from one gold-bearing area to another. It authorises mining at the location described in the certificate. A holder of a mining title cannot migrate it by assertion, by private agreement, by unofficial coordinates, or by the physical presence of machinery.

[36] The applicant also relied on the affidavit of Partson Chikondowa, the pegger said to have been involved in the Angee 62 process. He distanced himself from the purported registration notice placing Angee 62 within the applicant's Inyatsi area and stated that the signature attributed to him was forged. The first and second respondents responded principally with denials and a request for cross-examination. Even if I put the allegation of forgery aside, the respondents remain without lawful authority to mine at Inyatsi because their own certificate places Angee 62 at Brecon Farm. The forgery allegation aggravates the respondents' difficulty; it is not the only basis upon which their defence fails.

[37] The purported sale to Gold Yields does not assist the respondents. A seller cannot transfer more rights than he has. If the second respondent's right was to mine Angee 62 at Brecon Farm, Gold Yields could acquire no right to mine within SG 10332 at Inyatsi. The agreement of sale, even if valid *inter partes*, could not expand the geographic ambit of certificate number 39309.

[38] In any event, the agreement relied upon shows that Prosper Shumba represented Gold Yields in the sale transaction. That undermines the first respondent's attempt to distance himself from the operations. The applicant also points to material showing that the first respondent, through TIP Mining Syndicate in related proceedings, asserted interest and activity in the same broad Inyatsi area.

[39] The respondents' position is internally inconsistent. They deny personal involvement yet oppose an order which, if they are not mining at the applicant's site, should not prejudice them. They say Gold Yields is the operator but do not show that Gold Yields holds a certificate for SG 10332 or any certificate authorising mining at Inyatsi. They say the Chinese investors are the real actors but do not identify them in a manner that enables the court to accept that they are independent parties acting outside the respondents' authority.

Material disputes of fact

[40] The first and second respondents argued that there are material disputes of fact requiring *viva voce* evidence. They referred to the alleged migration of Angee 62, the allegation of forgery, the involvement of Chinese nationals, and the identity of persons on the ground.

[41] The law is that not every factual dispute prevents the determination of an application on the papers. A court takes a robust and common-sense approach where the dispute can be resolved without injustice. Where the respondent's denials are bare, evasive or immaterial to the dispositive issue, the court is not compelled to refer the matter to oral evidence. The authorities recognise that even where facts are disputed, if the court is satisfied on the respondent's version together with admitted facts that the applicant is entitled to relief, the court may grant relief.

[42] The decisive issue is documentary. It is whether the respondents have placed before the court a mining title authorising mining within SG 10332 at Inyatsi. They have not. Their certificate points to Brecon Farm. No migration authority has been produced. No amended certificate has been produced. No certificate in the name of Gold Yields authorising mining at Inyatsi has been produced.

[43] The alleged disputes are therefore not material in the legal sense. They do not prevent the court from determining the application. The robust view of the papers favours the applicant.

Misjoinder and non-joinder

[44] The first and second respondents argued that the applicant cited the wrong parties and ought to have joined the Chinese company allegedly operating on the ground.

[45] The argument lacks merit. The applicant's evidence is that the Chinese persons on the ground referred the applicant to persons connected to the first respondent. The first respondent knew who the foreign investors were but did not identify them with precision. A litigant cannot conceal the identity of its agents or associates and then complain that they were not cited.

[46] The order sought is directed at the first to third respondents and persons acting through them. If the Chinese operators are independent actors, the respondents will not be prejudiced by the order. If, as the papers suggest, they are agents, associates, employees, investors or proxies acting through the respondents, then the order properly reaches them through the respondents.

[47] Non-joinder is fatal only where the absent party has a direct and substantial interest which cannot be protected without its presence. On these papers the operative interest is that of the persons under whom the mining activity is being conducted. The first and second respondents cannot defeat relief by pointing to unidentified agents.

Failure to exhaust alternative remedies

[48] The respondents submitted that the applicant should have reported the matter to the police or pursued an injunction through the Ministry of Mines under s 354 of the Mines and Minerals Act (**Chapter….)**

[49] The record shows that the applicant did approach the office of the fourth respondent and requested action. It also says that the fourth respondent's office took time to investigate and that, by 9 March 2026, the applicant was advised that attempts to stop the first to third respondents had failed. The applicant's papers repeatedly state that the administrative route had failed and that the mining activities had escalated.

[50] A police report is not equivalent to an interdict. Criminal proceedings punish offences. They do not necessarily preserve a mining site, prevent further extraction, protect ore already removed from the ground, or secure compliance pending civil eviction proceedings. The alternative remedy must be adequate, ordinary, reasonable and capable of granting similar protection.

[51] On these facts, the applicant had no adequate alternative remedy. The administrative remedy had failed. The criminal law remedy would not provide similar protection. The only effective remedy was an interdict.

The fourth respondent's role and the attempted administrative turnaround

[52] It is necessary to say more about the conduct of the fourth respondent. The applicant's complaint is not simply that the Ministry delayed. The complaint is that after technical steps, recommendation, invoicing, payment and the order of CHITAPI J, officials sought to rely on alleged rejections and alleged overpegging to avoid issuing the certificate ordered by the court.

[53] The applicant's answering affidavit to the fourth and fifth respondents' papers attacks the alleged rejection letter on several grounds. It points out that the document relied upon as "Annexure A" to the fourth and fifth respondents' opposition refers to 260.9 hectares and SG 10333, while SG 10332 concerns 159.4 hectares. It also disputes the alleged rejection based on SG 7291 and says the earlier coordinate problem relating to Gold Fishers was corrected in the subsequent renewal.

[54] The fourth and fifth respondents' later heads of argument again contend that the applicant lacks *locus standi*, has no legal right, has suffered no irreparable harm and has alternative remedies. Those submissions add nothing of substance. They are inconsistent with the extant order of CHITAPI J and they do not identify any lawful title held by the first to third respondents over SG 10332.

[55] A public official who has been ordered by a court to perform an act cannot, by affidavit in collateral proceedings, treat that order as though it does not exist. If the Ministry considered the order of CHITAPI J erroneous, its remedy was to apply promptly for rescission, variation or appeal, as the rules permit. It was not to ignore the order while private actors mined the ground.

[56] The sudden administrative turnaround, viewed against the escalating mining activities, is disturbing. The fourth respondent's office was expected to protect the integrity of the mining register and to enforce the law against illegal miners. Instead, the papers suggest that the office entered the fray to defeat the applicant's protection. This court cannot countenance that.

Whether the requirements of an interdict are satisfied

[57] The applicant has established a clear or, at the very least, strong *prima facie* right. That right is founded upon the approval process, the invoice and payment, the maps and verification material, and most importantly the order of CHITAPI J in HCH 6447/25.

[58] The applicant has established actual and apprehended harm. Mining involves the extraction of a finite resource. Once gold ore is removed from the ground and processed, the loss is not easily reversible. The papers describe heavy equipment, tipper trucks, bulldozers, excavators, land clearance, construction works and intensified mining activity. The applicant's position is that the respondents increased operations after eviction proceedings had been instituted, with a view to extracting as much ore as possible before the litigation was finalised.

[59] The balance of convenience favours the applicant. If the interdict is refused and the applicant ultimately succeeds in HCH 5896/25, the mine area may be depleted and degraded. If the interdict is granted and the respondents later prove lawful entitlement, their rights can be vindicated in the main proceedings. But if they have no right, each day of mining is a continuing invasion of the applicant's mining area.

[60] The respondents have not shown any prejudice deserving protection. A person mining outside the area described in his certificate suffers no lawful prejudice when interdicted from continuing.

[61] The applicant has no adequate alternative remedy, for reasons already stated. The administrative route failed. Police processes do not afford equivalent protection. Damages would be difficult to quantify and may be hollow where the extracted mineral is dispersed, processed or sold.

[62] The requirements for an interdict are therefore satisfied.

The relief

[63] The applicant sought relief restraining mining and construction works, prohibiting removal of ore, fittings, machinery and equipment, and securing enforcement through the Zimbabwe Republic Police.

[64] I am satisfied that the applicant is entitled to an interdict. I am also satisfied that the order must preserve ore, machinery and installations on site pending the determination of HCH 5896/25. The court should, however, express the preservation order carefully. This is an interdict pending eviction proceedings. The present proceedings should not finally determine all questions of ownership, damages or forfeiture beyond what is necessary to prevent continuing illegality and preserve the subject matter.

[65] The respondents have no right to mine within SG 10332 by virtue of Angee 62 certificate number 39309 or by virtue of any sale agreement between the second respondent and Gold Yields (Private) Limited. That much is clear on the papers.

[66] The gold ore already extracted and piled at the site must not be removed by the respondents or their associates. It shall remain preserved pending the determination of HCH 5896/25 or further order of this court. Likewise, machinery, fittings and equipment brought onto the applicant's SG 10332 area shall not be removed without leave of court, because such removal may defeat the applicant's claim for damages and frustrate enforcement.

[67] The conduct of the first and second respondents in raising numerous points *in limine*, many of which were without substance, warrants censure. The raising of preliminary points as a matter of fashion has been deprecated. In *Telecel Zimbabwe (Pvt) Ltd* v *POTRAZ & Ors* HH 446/15, MATHONSI J warned that points in limine should be taken only where meritable and likely to dispose of the matter.

[68] This is an appropriate case for attorney-client costs against the first and second respondents. The third respondent did not appear and filed no proper opposition. The order will nevertheless bind him because he was cited and served and because the relief concerns the mining activities alleged to be conducted jointly with him.

Disposition

[69] In the result, the following order is made:

a) The application to set aside the set down is dismissed.
b) The notice of opposition and opposing affidavit filed on behalf of the fourth and fifth respondents are expunged from the record.

c) The first, second and third respondents, together with their employees, agents, proxies, assignees, business associates, investors, contractors, appointees and all persons acting through them or under their authority, are interdicted from carrying out any mining, processing, construction, excavation, extraction, transportation or related works within the applicant's Inyatsi mining area falling under Special Grant 10332, Reserved Area 1566, Mazowe District, under map number 1731A3, pending determination of case number HCH 5896/25.

d) The first, second and third respondents have no right, by virtue of Angee 62 certificate of registration number 39309, or by virtue of any sale agreement relating to Angee 62, to conduct mining operations within the applicant's Inyatsi mining area under SG 10332.

e) The first, second and third respondents, together with all persons acting through them, are interdicted from removing from the site any gold ore already extracted and piled within the applicant's SG 10332 area pending the determination of HCH 5896/25 or further order of this court.

f) The first, second and third respondents, together with all persons acting through them, are interdicted from removing, destroying, alienating, relocating or interfering with any mining machinery, fittings, installations, equipment or improvements brought onto the applicant's SG 10332 area, pending the determination of HCH 5896/25 or further order of this court.

g) The Sheriff of Zimbabwe and any duly attested member of the Zimbabwe Republic Police are authorised to ensure compliance with this order, including by stopping mining operations, preventing removal of ore or equipment, and securing the site to the extent necessary to give effect to this order.

h) The first, second and third respondents shall pay the applicant's costs of suit jointly and severally, the one paying the others to be absolved, on the legal practitioner and client scale.

The Registrar shall transmit a copy of this judgment to the Permanent Secretary for Mines and Mining Development and to the Attorney-General for their attention to the observations made in this judgment concerning the conduct of public officials in the administration of SG 10332.

MAMBARA J……..

Chinawa Attorneys, applicant's legal practitioners
Chasi Maguudze, first – third respondents' legal practitioners
Civil Division, fourth & fifth respondents' legal practitioners